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****File No. EXP202304685**

****RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT****

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

****BACKGROUND****

****FIRST:**** On July 5, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against UNIQLO EUROPE, LTD, BRANCH IN SPAIN (hereinafter, the claimed party), through the Agreement that is transcribed:

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****File No. EXP202304685 (PS/00238/2024)**

****AGREEMENT TO INITIATE SANCTIONING PROCEDURE****

From the actions taken by the Spanish Agency for Data Protection and based on the following

****FACTS****

****FIRST:**** A.A.A. and B.B.B. (hereinafter, the claiming party) filed a complaint with the Spanish Agency for Data Protection on March 31, 2023. The reported facts reveal a possible infringement attributable to UNIQLO EUROPE, LTD, BRANCH IN SPAIN with NIF W8266168G (hereinafter, UNIQLO).

The known facts are as follows:

The first complaint filed by the claiming party, who provided services at the claimed entity, states that on August 8, 2022, after requesting their payroll from the entity, they received an email with an attached PDF document that included their payroll and that of 446 other employees of the workforce. Along with the complaint, they provide the PDF document that contains the payrolls of 447 employees of the claimed entity, including names and surnames, ID number, social security affiliation number, and bank account number, among other data.

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The second complaint originates from receiving the informative communication of the breach, sent by UNIQLO to the affected employees via email. The claiming party of this second complaint, who states that they belong to the Works Council, provides a screenshot of the email received on May 4, 2023.

****SECOND:**** In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to UNIQLO, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

UNIQLO responded to the forwarding of the complaint on May 18, 2023. However, it is observed that from the response to the forwarding of the complaint, a possible violation of data protection regulations is inferred.

****THIRD:**** On June 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming party was admitted for processing.

****FOURTH:**** The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions taken, the following aspects have been known:

1.- Verification of the reported facts.

As the first aspect of these investigative actions, the information provided in the complaint and by the claimed party has been analyzed, both in the forwarding and in subsequent requests regarding the origin of the incident.

The cause of the breach would be a PDF file containing information about the entire UNIQLO workforce related to the payrolls for the month of July. This file has been provided by the claiming party and the information contained in it has been contrasted, as well as the reason it was sent improperly to an unauthorized person.

The claimed party admits the reported facts: Due to the termination of the employment contract of the claiming party, they requested their payroll for July 2022 from the human resources department. They state that, in the context of the exchange of information via email, their human resources department mistakenly sent the indicated file, containing information about the entire workforce. They attribute this fact to human error, both in the document notifying the personal data breach: "the breach was caused by an HR staff by mistake (human error) who did...

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"did not follow the internal process" (in Spanish: "la brecha fue causada por un error del personal de RRHH (error humano) que no siguió el proceso interno") and in numerous points of the allegations "the HR Employee sent a file that, by mistake, contained the payroll for the month of July for all Uniqlo workers and the following personal data:...".

The responding party states that the file contained information for 446 Uniqlo workers. After reviewing the list provided in the complaint, it is confirmed that, although the file contains 471 payrolls, they correspond to 447 employees, as there are some cases where the same person had different payrolls associated during the month for various work-related reasons (change of contract, leave, etc.). The complaint indicates the figure of 470 workers, not counting the claimant employee, but the correct figure would indeed be 446.

The responding party states that the file contained the following personal data: name, surname, ID/NIE number, Social Security number, bank account number, and remuneration received. It is verified that the statements of the responding party are consistent with the information provided by the claimant party and the filtered file submitted.

Additionally, the responding party provides communications that took place at that time between the claimant party and the person who intervened from human resources, via email. Through these messages, the date of the incident can be verified, with the file being sent on August 8, 2022. It is inferred from the exchanged communications that the claimant party would delete the file ("For your peace of mind, I inform you that I did not download it, I opened it online and as soon as I saw the first page I closed it, so don't worry, it's not in my files"), a fact that may have influenced the actions of the personnel of the responding party.

According to the responding party, the human resources employee who sent the file did not inform their superiors nor did they notify the company, so the breach did not become known nor was any proactive action taken regarding it. They only became aware, as they state, when they received notification of the transfer of the complaint: "on April 18, 2023, Uniqlo received a notification from the AEPD regarding the transfer of the complaint filed and was required to provide certain information. It was at this precise moment that Uniqlo, as a business organization, was able to learn about the security incident from last August, which had been unknown until then."

2.- Informative communication of the breach.

2.1. Notification to the supervisory authority.

Since the information about this breach reached the Agency through a complaint, the responding party was asked to explain why the breach was not reported. As indicated in the previous point, the argument presented by the responding party is that they were unaware of the existence of the breach until they received the transfer of the complaint. Internally, they blame this situation on the human resources person who sent the information: "the HR employee – in a flagrant violation of Uniqlo's internal policies – did not inform at any time their hierarchical superior or the management of Uniqlo about the incident, which is why the company could not know in a timely manner that it had occurred

and, consequently, could not notify the AEPD in accordance with Article 33 of Regulation 2016/679 General Data Protection."

Subsequently, they made the formal notification of the personal data breach, dated April 24, 2023, and it was incorporated into the file. This notification includes the following relevant points:

- Responsible: UNIQLO EUROPE LTD, branch in Spain.
- Processor: There is no data processor.
- Affected: 471 employees.
- Affected data: Basic contact data, identity number, economic data (without payment data), and contact data.
- Cause of the breach: Accidental, of internal origin. The explanation previously mentioned in point 1 of the report regarding the human resources error is provided.
- Consequences for the affected: Confidentiality affected. They could suffer severe inconveniences such as phishing or identity theft attempts, although it is considered unlikely that this will materialize.
- Cross-border: No, only in Spain.
- Minors: There are no minors among the affected.

2.2. Communication to the interested parties:

On the other hand, information regarding the communication to the interested parties was requested. The responding party states that the communication informing them of the incident was made a few days after they became aware of it, on May 4, 2023.

They provide the communication sent, which is available in both Spanish and English. In it, the incident is reported, explaining the causes and its magnitude in clear and concise language ("in the context of responding to a legitimate request, a file with your payroll for the month of July 2022 was mistakenly sent to a former employee by UNIQLO. The information contained in a payroll sheet includes the following personal data: name, address, ID/NIE number, Social Security number, bank account number, salary, and its breakdown"). It is reiterated that the management was not aware until it was communicated by the AEPD, thus justifying the several months' delay between the events and the communication. An email contact is provided for inquiries.

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additional. They state that they have received 10 communications regarding this matter, which have been duly addressed.

In the communication, it is stated that there is no evidence of exfiltration of personal data and a reference to INCIBE (National Cybersecurity Institute) is provided so that affected individuals can consult additional cybersecurity resources. The possible consequences of this breach are not specified, although it is stated: "we recommend that you remain vigilant to any potential risks that may arise from the misuse of your personal data."

Finally, the measures that UNIQLO will take to try to ensure that no further incidents of this type occur are indicated: training for staff in cybersecurity and data privacy, along with the review of internal procedures and policies.

In addition to the text of the communication, a table of 15 questions and answers sent to the affected individuals is provided, summarizing the description of the breach and the points mentioned above. A letter addressed to the Works Committee is also included, dated the same day, informing them of this incident and requesting their collaboration.

They state that they communicated via email to all affected individuals, consisting of 287 employees and 160 former employees in May 2023, as they no longer had an employment relationship with a significant group of the affected individuals. Considering that the first claimant was also among the workers, the communication would have been made to all affected individuals. Accreditation has been requested to confirm that the communication was effectively made to all affected personnel, but no confirmation has been received in this regard, although samples of the emails sent to both active workers and former employees are provided.

The content of the communication is provided in duplicate, as the second claim also attaches it. In this claim, which comes from a person who claims to be from the Works Committee, it is indicated that "the company is sending an email (attached) to all workers in which it communicates and acknowledges that there has been a communication to third parties which contained personal data," thus confirming

that the communication was effectively made to at least all active personnel at that time.

3.- Payroll Management.

Since the breach occurred due to the management of the company's payroll, further investigation into its functioning and organization has been conducted.

(...).

(...).

(...).

(...).

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(...).

(...).

(...).

However, in this particular case, the data processor, although it is a matter related to payroll, had no involvement in the incident as it was confined internally to the responsible party.

4.- Security Measures.

4.1. Measures prior to the incident.

Information has been requested from the responding party regarding the measures prior to the incident concerning data protection, as well as the regulations that develop the action protocols.

The responding party states that they have the following technical and organizational measures: (...).

Regarding the processing of data for payroll management, the responding party states that a specific impact assessment has not been carried out, as they interpret that it is not considered a processing activity that requires this assessment. Consequently, they state that a specific risk analysis for this processing has also not been documented: "As far as the processing of data related to payroll management is concerned, the company has not carried out an impact assessment since, in accordance with Article 35.3 of the GDPR, payroll management is not considered a processing activity that requires this assessment. Likewise, and in line with the above, the company has not documented a specific risk analysis for this processing."

In any case, they state a series of security measures that are applicable to this processing. Among them:

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

- (...).

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UNIQLO has a digital platform called the ISO portal. It is an online portal operated by the corporate group's information security office, where materials and documentation related to information security are made available to employees. Among the documentation available on the portal are the aforementioned basic security regulations ("Fast Retailing Group - Information Security Basic Regulations") and the information security manual ("Information Security Handbook"). Accreditation is provided that these protocols are accessible within the portal. As will be developed later, information

regarding the dissemination of the use of this portal among employees is also provided. In addition to the above, measures would be in place with the data processor, GM Integra RRHH S.L., although in this case, the breach would be unrelated to them.

In the regulatory framework, the following documentation is provided in this regard:

- Procedure for incident management. This procedure states the obligation to report any type of incident, whether or not it was malicious, to both the information security department and their direct supervisor: "All Officers and Employees are required to report Information Security Incidents (hereinafter Incidents) to their direct manager and ISO immediately through the ISO Portal. Reporting must include actual, suspected events or anomalies with or without malicious intent" (in Spanish: "Todos los Responsables y Empleados están obligados a notificar Incidentes de Seguridad de la Información (en adelante Incidentes) a su responsable directo y a ISO inmediatamente a través del Portal ISO. La notificación debe incluir sucesos o anomalías reales o presuntos, con o sin intención maliciosa.").
- Basic information security regulations ("Fast Retailing Group - Information Security Basic Regulations"). It states that it has been in force since February 2017 and mentions the obligation of confidentiality that employees must maintain when disclosing information assets through digital means, as well as the need to report in case of information loss.
- Information security manual ("Information Security Handbook").
- Record of Processing Activities, which includes the payroll management activity and the personal data affected by this processing.
- Data protection protocol of the human resources department. This protocol states the need to inform the information security department (ISO) in case of a breach.
- Risk matrix
- Store employee manual

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Point 5 of this report will delve into the effective dissemination of this regulation among UNIQLO employees.

Regarding contractual measures with human resources personnel, the Code of Conduct is provided to employees at the time of their hiring. Among the principles stated is the respect for personal and confidential information, as well as the improper or inappropriate use thereof. Data protection clauses for employees are also provided. These clauses are directed at the data provided by the worker, not concerning the management of personal data of other employees.

4.2. Measures taken subsequently.

In relation to the previous point, the respondent has been requested for information regarding the measures taken after the incident, aimed at preventing such events from occurring again.

They state again that all actions have been taken following the transfer of the complaint by the AEPD, not after the events occurred in August 2022. Among them are the following:

- Internal opening of the incident and inclusion of the security breach in the organization's breach register. This register is provided, where the incident is recorded along with the associated risk matrix.
 - Notification to the AEPD, as previously discussed in point 2.1.
 - Notification to the affected parties and the Works Council, as previously discussed in point 2.2.
 - Hiring of external legal services for advice on this case.
 - Implementation of the threat intelligence tool (...), which will be developed in point 6 related to the exfiltration of data.
 - Review of internal protocols of the human resources department and the payroll sending process.
- Among the changes made, they state: former employees will be able to download their payslips (...). Additionally, UNIQLO's human resources department will exchange payslips with the management company responsible for this processing on an individualized basis, sending the specific payslips of

each worker and not collectively.

At the organizational personnel level, they state that the following actions have been taken:

- Opening of a disciplinary file against the human resources employee for serious breach of the duties of good faith and legitimate trust for not having followed the existing protocols. They state that this is considered a very serious offense that could even lead to dismissal.

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- Training for those affected regarding data protection, focused on protection against possible consequences. They provide the email of the notice, dated May 2023.

- Training for UNIQLO employees aimed at reinforcing data protection and the company's internal protocols and policies. A tentative schedule of training actions is provided. Additionally, they indicate that a vigilant attitude will be maintained regarding this incident and that it will be periodically reviewed to ensure that the compromised data has not been published on the Internet. Lastly, although the responding party does not expressly state it as a measure adopted following the incident, the addendum signed with the management company GM Integra RRHH S.L., responsible for processing payroll management services, is highlighted, which was signed in May 2023, and as stated, the purpose was to reinforce proactive responsibility.

5.- Transfer of protocols to employees.

Due to the fact that the incident occurred due to human error, it is particularly relevant to analyze the situation and training of employees regarding data protection and cybersecurity. The responding party has been required to provide evidence of the dissemination and transfer of security policies to staff prior to the breach. They state that the company regularly sends circulars to all employees reminding them of relevant issues from the perspective of information security and data protection. The responding party states that the employee in question had the necessary training to perform their duties, based on which they provide numerous pieces of evidence of different types.

The following example circulars are provided:

- First circular, sent on October 20, 2020. In this circular, the Director of Information Security informs employees of the applications that are permitted for sending company information.

- Second circular, dated August 6, 2021, also sent by the Director of Information Security. In it, employees are reminded that the leakage of personal information constitutes a violation and that files shared with third parties outside UNIQLO must be sent using the tool (...). The circular includes links to the application and the user manual.

- Third circular, dated October 26, 2021, also sent by the same responsible person, in which employees are informed about information security incidents, indicating the portal for their management (the mentioned ISO portal) and includes a link to the incident management procedure.

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- Fourth circular dated March 1, 2022. In this circular, some behaviors contrary to the proper management of confidential information are exemplified, such as sending confidential information to unauthorized personnel.

For all these cases, it is evidenced that the involved human resources employee was copied on the informative circulars. On the other hand, the responding party states that the human resources employee in question also received specific training in data protection related to personnel management. The materials from the training provided on April 25, 2022, are submitted; this training was aimed at the protection of personal data in the personnel selection processes. Additionally, within the training activities, the responding party states that an annual reminder of the mentioned Code of

Conduct is carried out. It is evidenced that the involved employee completed a training session as of January 28, 2022, although the information provided in the evidence is brief and does not show its content. Another activity that the responding party states it conducts is the periodic distribution of educational videos that show accepted and prohibited behaviors in accordance with the Code of Conduct. These videos are provided, in which corporate codes of conduct, best practices, and handling of confidential information are addressed. The videos are in English, with subtitles in Spanish. It cannot be evidenced from the information provided that their effective dissemination occurred, nor which personnel would have viewed them.

6.- Exfiltration of the affected data.

There is no record of exfiltration of the data affected by the breach. The responding party states that it has no information in this regard nor that they could have been used for other purposes. As indicated: "the information security department has used the threat intelligence tool (...) to monitor the impact of the incident. The result of the analysis carried out with this tool indicates that, as of the date of this document, no leaks of Uniqlo's data, including the data related to the compromised file, have been detected on the internet (not even on the so-called 'dark web')." A statement from the Information Security Officer dated May 18, 2023, is provided, detailing the analysis conducted and its conclusions, confirming that no information leaks have been detected nor that the data had been published against the will of the affected individuals.

FIFTH: According to the diligence dated May 27, 2024, contained in the file, the total annual turnover of the UNIQLO Group, whose economic activity is the retail trade of clothing in specialized establishments, for the financial year 2023, was approximately (...) million euros.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.2) of the GDPR defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by

automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction.”

For its part, Article 4.7) of the GDPR defines the "data controller" or "controller" as:

“the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States.”

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that UNIQLO EUROPE, LTD, BRANCH IN SPAIN collects, consults, communicates by transmission, and stores, among others, the following personal data of individuals working in this company: name, address, ID number/NIE, social security number, bank account number, salary and its breakdown, among other processing activities.

UNIQLO EUROPE, LTD, BRANCH IN SPAIN carries out this activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in section 1.f) of Article 5 of the GDPR. Meanwhile, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

IV

Obligation Breached. Principles Relating to Processing

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, on August 5, 2022, the complainant requested via email from the human resources department of UNIQLO to send them the payroll for the month of July (page 546 of the file). In response, on August 8, 2022, UNIQLO sent the complainant, also via email, a PDF document containing the payrolls of 447 of its employees, which the complainant submitted along with the complaint.

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The documentation in the file provides clear evidence that UNIQLO violated Article 5.1.f) of the GDPR, "Principles relating to processing," by failing to adequately ensure the confidentiality and integrity of personal data of its employees, which was disclosed to an unauthorized third party. This duty of confidentiality and integrity is understood to aim at preventing unauthorized data leaks by the data subjects.

Therefore, in accordance with the evidence available at this time in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to UNIQLO EUROPE, LTD, BRANCH IN SPAIN, for violation of the previously transcribed article.

V

Classification and qualification of the infringement for the purposes of the prescription of Article 5.1.f) of the GDPR

Article 83.5 of the GDPR classifies the violation of the following article as an administrative infringement, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up

to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purpose of the limitation period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for sanction

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In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the

aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.

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- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the seriousness of the established infringement, particularly regarding the consequences that its commission causes to the claiming party, the imposition of a fine is warranted, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the condition of being a large company and the turnover of the claimed party is considered, which amounts to (...) million euros in the year 2023.

Prior to this, the following circumstances are deemed to be present:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered (Article 83.2, letter a), of the GDPR): The information was sent via email, which poses a greater risk of data leakage, not only due to the recipient of the email (the claiming party) but also because of vulnerabilities in email security, as the data was not encrypted, allowing any attacker to potentially access the data in transit. Furthermore, the number of affected parties by the personal data breach is 447.
- Intentionality/Negligence in the infringement (Article 83.2, letter b), of the GDPR): Although it cannot be understood that UNIQLO acted with intent, a lack of diligence is observed in complying with the obligations imposed by data protection regulations, such as the compliance and implementation of appropriate technical and organizational measures to ensure an adequate level of security relative to the risks in the processing it carries out, specifically in the management of its employees' payroll; in this regard, the SAN of 17/10/2007 can be cited, which, although issued before the GDPR came into force, is perfectly extrapolatable to the case we are analyzing. The ruling, after mentioning that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant is of...

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constant and abundant handling of personal data must emphasize the rigor and exquisite care to

comply with the legal provisions regarding this matter.

- The categories of personal data affected by the infringement (Article 83.2, letter g), of the GDPR): In addition to identifying personal data of the workers, financial data such as bank account numbers and monthly income were leaked. In section 3.6 of Guidelines 04/2022, regarding the calculation of administrative sanctions under the GDPR, issued by the European Data Protection Board (hereinafter, EDPB), in compliance with the objective of ensuring the coherent application of the General Data Protection Regulation, as attributed to it by its Article 70, the following is established (unofficial translation):

“Categories of affected personal data

58. Regarding the requirement to take into account the categories of affected personal data [Article 83, paragraph 2, letter g), of the GDPR], the GDPR clearly highlights the types of data that deserve special protection and, therefore, a stricter response regarding fines. This refers, at a minimum, to the types of data referred to in Articles 9 and 10 of the GDPR and to data outside the scope of these articles whose dissemination causes immediate harm to the data subject 26 (for example, location data, data about private communications, national identification numbers, or financial data, such as transaction summaries or credit card numbers).”

Furthermore, the following aggravating factors are considered:

- The link between the infringer's activity and the processing of personal data (Article 76.2, letter b), of the LOPDGDD): The development of business management activities by UNIQLO requires continuous processing of personal data of its workers.

Additionally, the following mitigating factors are considered:

Any other aggravating or mitigating factor applicable to the circumstances of the case (Article 83.2, letter k), of the GDPR): The email message had a single recipient, the claiming party.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1.f) of the GDPR, allows for an initial administrative fine of €300,000 (three hundred thousand euros).

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VII

Unfulfilled obligation. Security of processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the

requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

The GDPR defines personal data security breaches as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data."

The documentation in the file evidences the violation of Article 32.1 of the GDPR, due to the lack of adoption of appropriate technical and organizational measures, which allowed an unauthorized third party access to the personal data of UNIQLO workers, caused by the sending via email of the payroll of 447 workers of UNIQLO.

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It should be noted that the GDPR in the cited provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the detected risk, indicating that the determination of the technical and organizational measures must be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (which are not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security to the risk, particular attention shall be paid to the risks presented by the processing of data, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

"(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and apply measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation concerning the risks and the nature of the personal data that must be protected. When assessing the risk in relation to the security of the data, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data, particularly susceptible to causing physical, material, or immaterial harm."

In the present case, it is evident that the security measures implemented in relation to the data being processed were not adequate to ensure the security and confidentiality of personal data at the time of the bankruptcy.

As Recital 39 also states:

"...Personal data must be processed in a manner that ensures adequate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing."

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UNIQLO justifies a series of technical and organizational measures to preserve the security and privacy of its information systems. These measures were not adequate to prevent the events subject to the claim, thus the infringement of Article 32 of the GDPR occurs due to the absence of measures that would have prevented the breach that took place. Similarly, a series of measures adopted subsequently have been provided, such as allowing former employees access to their payroll for a period of 60 days after the termination of their contract or the review of the payroll sending process by the human resources department, as well as redesigning the internal protocols of that department. These measures cannot be taken into consideration for the purpose of assessing UNIQLO's liability in the events.

UNIQLO's liability is determined by the personal data breach highlighted in the claim, as it is responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure an adequate level of security relative to the risk, to safeguard the confidentiality of the data, restore its availability, and prevent access to it in the event of a physical or technical incident. In this regard, the measures were not appropriate, regardless of the personal data breach that occurred.

The negligent action of the employee in managing the personal data contained in the employees' payroll does not exempt UNIQLO from liability. The company's liability in the sanctioning sphere for the negligent actions of an employee that result in a breach of data protection regulations has been confirmed by the jurisprudence of the Supreme Court. In this respect, it is worth mentioning the Supreme Court Judgment No. 188/2022 (Contentious Chamber, Section 3), dated February 15, 2022 (rec. 7359/2020), whose Fourth Legal Ground states: "The fact that it was the negligent action of an employee does not exempt her from responsibility as the person in charge of the correct use of the security measures that should have guaranteed the proper use of the designed data registration system. As we already stated in STS No. 196/2020, dated February 15, 2021 (rec. 1916/2020), the data controller is also liable for the actions of its employees and cannot excuse itself based on its diligent actions, separately from the actions of its employees, but rather it is the "culpable" actions of these employees, resulting from the violation of existing security measures, that underpin the company's liability in the sanctioning sphere for the "own" acts of its employees or officers, not those of third parties."

The judgment continues to argue about the liability of legal entities in our legal system: "...It simply happens that, while direct liability of legal entities is admitted in our Administrative Law, which therefore recognizes their capacity to infringe, the subjective element of the infringement is manifested in these cases differently than it is for natural persons, so that, as noted by the constitutional doctrine we have previously mentioned - STC 246/1991, of December 19 (F.J. 2) and 129/2003, of June 30 (F.J. 8) - direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for that protection to be genuinely effective and from the risk that, consequently, the legal entity subject to compliance with that norm must assume."

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Therefore, in accordance with the evidence available at this time regarding the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to UNIQLO EUROPE, LTD, BRANCH IN SPAIN, for violation of the article transcribed above.

VIII

Classification and qualification of the infringement for the purposes of the statute of limitations of Article 32 of the GDPR

Article 83.4 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purpose of the statute of limitations, Article 73 of the LOPDGDD establishes the following:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered serious and shall be subject to a two-year statute of limitations, particularly the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

IX

Proposal for sanction

In accordance with the provisions of Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD transcribed above, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement classified in Article 32 of the GDPR, classified in Article 83.4.a) of the GDPR for which UNIQLO is held responsible, an initial assessment considers the following factors:

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Prior to this, the following circumstances are deemed to be present:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered (Article 83.2, letter a), of the GDPR): Since the information was sent via email, it poses a greater risk of data leakage, not only due to the recipient of the email (the complaining party) but also due to vulnerabilities in email security, as the data was not encrypted, allowing any attacker to access the data in transit. Furthermore, the number of affected parties by the personal data breach is 447.

- The categories of personal data affected by the infringement (Article 83.2, letter g), of the GDPR): In addition to identifiable personal data of the employees, financial data such as bank account numbers and monthly income were leaked. In section 3.6 of the Guidelines 04/2022, regarding the calculation of administrative sanctions under the GDPR, issued by the European Data Protection Board (hereinafter, EDPB), in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation, as attributed by its Article 70, the following is established (unofficial translation): "Categories of affected personal data

58. Regarding the requirement to take into account the categories of affected personal data [Article 83, paragraph 2, letter g), of the GDPR], the GDPR clearly highlights the types of data that deserve special protection and, therefore, a stricter response regarding fines. This refers, at a minimum, to the types of data referred to in Articles 9 and 10 of the GDPR and to data outside the scope of these articles whose dissemination causes immediate harm to the data subject 26 (for example, location data, data on private communications, national identification numbers, or financial data, such as transaction summaries or credit card numbers)."

Furthermore, the following aggravating factors are considered:

- The link of the infringer's activity with the processing of personal data (Article 76.2, letter b), of the LOPDGDD): The development of business management activities by UNIQLO requires continuous

processing of personal data of its employees.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 32 of the GDPR, allows for an initial determination of an administrative fine of 150,000 € (one hundred fifty thousand euros).

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X

Adoption of Measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...", the resolution adopted may require UNIQLO to demonstrate to this Agency, within a period of 3 months, the adoption of the following measures, without prejudice to others that may arise from the instruction of the procedure:

- Adopt technical and organizational measures to ensure the security of the personal data of its employees.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against UNIQLO EUROPE, LTD, BRANCH IN SPAIN, with NIF W8266168G:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

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FOURTH: THAT for the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond, without prejudice to what results from the instruction, would be an administrative fine:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of that regulation, an administrative fine of 300,000.00 euros.

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4.a) of that regulation, an administrative fine of 150,000.00 euros.

FIFTH: TO NOTIFY this agreement to UNIQLO EUROPE, LTD, BRANCH IN SPAIN, with NIF

W8266168G, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 360,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 360,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 270,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in the event of opting for any of them, it must send to the General Subdirectorate for Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (360,000.00 euros or 270,000.00 euros), it must do so

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payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it applies. Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, in the future, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 22, 2024, the respondent has proceeded to pay the sanction in the amount of 270,000 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was stated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the second has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the termination of procedure EXP202304685, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: ORDER UNIQLO EUROPE, LTD, BRANCH IN SPAIN to notify the Agency within 3 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: NOTIFY this resolution to UNIQLO EUROPE, LTD, BRANCH IN SPAIN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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